OPEN LETTER · EYE ON SHOALHAVEN COUNCIL

Shoalhaven Council's committee system: $845,000 spent, little delivered

Sent 5 September 2026 · To Shoalhaven City Council, Cr Wilkins · Response requested by 9 October 2026

Councillors, you may want to take this up as a NOM or QON - it is a disgrace and a waste of time and money. <>
OPEN LETTER <>
To: Mr Andrew Constance, Chief Executive Officer, Shoalhaven City Council
Copied to: Clr Peter Wilkins, Deputy Mayor; all councillors; the Public Officer; the Chairperson, Audit, Risk and Improvement Committee

From: Steve Prothero, Eye on Shoalhaven Council
Date: 7 September 2026

Subject: Council's committee system — your functions under section 335, what the committees have cost, what they have delivered, and why the problems already on the record are not being addressed

No response is sought from Mayor White, who is on approved leave of absence. A copy is provided to the Mayor's office for her return.

Mr Constance,

Since 13 August I have published six articles on Shoalhaven City Council's committee system:

on the Land Use Planning & Development Advisory Committee,
the committee system as a whole,
the Low-Cost Rental Initiative Working Group,
the Aboriginal Advisory Committee, and,
this week, the Motor Sports Working Group,
the Affordable Housing Action Taskforce and
the Local Transport Forum.

I have written to you once already on the Aboriginal Advisory Committee, on 4 September.

This letter is about the system, and it is addressed to you because the Act puts the system in your hands (CEO).

1. Your functions <>
Section 335 of the Local Government Act 1993 sets out the functions of the general manager — the office Council styles Chief Executive Officer. Four of them are engaged directly by what follows:

• 335(a) — “to conduct the day-to-day management of the council in accordance with the strategic plans, programs, strategies and policies of the council”;
• 335(b) — “to implement, without undue delay, lawful decisions of the council”;
• 335(c) — “to advise the mayor and the governing body on the development and implementation of the strategic plans, programs, strategies and policies of the council”;
• 335(f) — “to ensure that the mayor and other councillors are given timely information and advice and the administrative and professional support necessary to effectively discharge their functions”.
Section 223(1) gives the governing body the function of keeping “under review the performance of the council, including service delivery.”

Councillors cannot discharge that function on the committee system unless the information reaches them, and under 335(f) the person responsible for it reaching them is you.

The committee system is a Council program in the ordinary sense.

It consumes officer time,
it is the subject of an annual report to Council, and
it is governed by policies with review dates.
My questions go to whether the advice and information Council has received about it are sufficient to let councillors do their job, and if not, why not.

2. What Council has been told <>
The report on the committee system that went to Council on 23 September 2025 (CL25.303) contained this, and only this, under Financial Implications:

“There are costs to the Council with respect to the administration, preparation of agenda, attendance by staff and Councillors at meetings, and actioning the request of the Committees. These costs vary dependent upon the operations of each Committee and frequency of meetings.”
The report of 28 October 2024 (CL24.289) contained the identical paragraph, word for word.

In two years, on two resolutions that continued, deferred or abolished some twenty-one bodies, the elected Council has not been given a single figure — not officer hours, not dollars, not an FTE — for what the system costs.

Question 1. Does Council hold, in any form, a costing of officer time spent on the committee system? If it does, why has it not been reported under section 335(f)? If it does not, on what basis were the Financial Implications sections of CL24.289 and CL25.303 approved for publication?

3. What it has cost — an estimate, in the absence of yours <>
Because Council has published no figure, I have built one. Every assumption is set out in the article of 14 August and repeated here so it can be corrected. The model assumes 28 officer hours per report-bearing committee meeting at a loaded cost of $105 per hour, four hours of councillor time per attending councillor priced against the 2025/26 fee, and the meeting frequencies visible in the published agendas.

On that model:

Estimate
Cash cost of the whole system — 15 Council committees, 28 section 355 committees, 22 Accredited Community Forums, ~360 meetings a year
~$441,000 a year in officer and councillor time
The same, for the term to date (October 2024 to September 2026, 23 months)
~$845,000
Community volunteer time consumed by the system, at $45 an hour
~$626,000 a year
One report-bearing committee meeting
~$2,900 in officer time; ~$3,900 with councillors
The three bodies that met this fortnight — Motor Sports Working Group (1 Sept), Affordable Housing Action Taskforce (7 Sept), Local Transport Forum (8 Sept)
~$11,000–13,000 for the fortnight; in the order of $60,000–70,000 a year for the three
These are estimates on standard local-government assumptions, not Shoalhaven salary data. I would prefer to publish yours.

Question 2. What is the actual cost, in officer hours and dollars, of each of the following for the 2025/26 financial year:
the Land Use Planning & Development Advisory Committee;
the Affordable Housing Action Taskforce;
the Motor Sports Working Group;
the Aboriginal Advisory Committee;
the Local Transport Forum;
the Finance and Infrastructure Review Panel;
and the committee system as a whole?

4. What the committees have delivered this term <>
This is drawn entirely from Council's own agendas, minutes and attachments. If any line is wrong, I will correct it at the top of the published letter.

Land Use Planning & Development Advisory Committee — established 23 September 2025 (CL25.314); all councillors are its voting members; no power to incur expenditure or bind Council. Its recorded outputs since November 2025: one request that the Director report to Council on Berry sewerage capacity; one recommendation that the Nowra Precinct

Renewal Strategy be presented to the three local MPs; and receipt of two floodplain risk management plans referred to it on 29 July 2026 after staff had recommended their adoption at the Ordinary meeting. Cr Boyd has twice asked from the floor why the committee exists. She has not been answered.

Affordable Housing Action Taskforce — resolved 28 October 2024; first met September 2025, roughly eleven months later; four meetings held before this one. Nineteen voting members; twenty-six people in the room in June for two hours. Of the five items on 7 September, three are "for information"; the one substantive recommendation asks the Taskforce to endorse deferring Strategy Action 1.2, a "short-term action" due "before the end of 2026." Its Terms of Reference require its minutes to be "reported to the elected Council"; I have been unable to find an occasion on which that has occurred. Its continuation was resolved "for the period to September 2026." The seven "successes" listed in its own advocacy attachment were each secured by a Council development decision, a court consent, a State rezoning or a State-led project — none is attributed to a recommendation of the Taskforce.

Low-Cost Rental Initiative Working Group — resolved 27 January 2026 with Terms of Reference to be brought back "as a matter of urgency"; the Terms came back on 29 June, five months later; community recruitment closed 1 September. It has not met.

Motor Sports Working Group — twenty-six names on the membership list, including all thirteen councillors. Its one resolution of 2026 — letters to three MPs and the Minister for Lands and Property, and an invitation to RDA — was adopted by Council on 28 April and completed by 12 May. The answers, reported to the group on 1 September: four undetermined Aboriginal Land Claims over the preferred site, no timeframe, not prioritised, and the group had already asked in 2024 and been refused; grant funding is for "shovel ready" projects, not planning. Staff advised in March that Council "does not have the internal resources or budget to undertake the specialist assessments required." Both items on the 1 September agenda were for information.

Aboriginal Advisory Committee — Terms of Reference (POL16/172) two years past their review date; no budget; chaired in March by a Council manager contrary to the Terms; chair resigned 3 August 2026; new members cannot be appointed while the chair is vacant because the Terms require the chair on the interview panel; three place names endorsed in June and declined by the Land Council in July; members describe it in Council's own survey as a "toothless tiger." The review your Vibrant Communities team is running is the one thing in this list that is working as it should, and I have said so.

Homelessness Advisory Committee, Arts Advisory Committee, Shoalhaven Sports Board, Nowra CBD Revitalisation Strategy Committee, Shoalhaven Economic Growth Advocacy Group — all dormant for an average of about nineteen months before being wound up on 23 September 2025; all five identified as dormant in the October 2024 report and deferred

to “separate report/s” that took eleven months to arrive. The Arts Advisory Committee page on Council’s website was still calling for applications on 14 August 2026.

Local Transport Forum — the exception, and it should be recorded as one: a ten-minute meeting in August, every item approved by the Director City Services within six days, the completion recorded in the minutes. It is also the body Council’s own agenda says is “not a committee of Council,” and the one the 2025 Authorisation and Delegation Instrument (commenced 1 August 2025) no longer requires to be convened for parking controls, estate signage or warning signs. The instrument permits meetings “via correspondence.” Every recommendation still cites a 2021 sub-delegation, MIN21.411.

Across the whole list, over twenty-three months, I can find one resolution of a committee that Council adopted and staff completed (the Motor Sports letters), one committee request for a report that is yet to arrive (Berry), and no published action register for any body. Against an estimated $845,000 in officer and councillor time.

Question 3. Does Council maintain, for any committee, a register recording each recommendation, the officer responsible, the due date, the status and the evidence of result? If not, will you establish one and report it to the Ordinary meeting?
Question 4. The Affordable Housing Action Taskforce was continued “for the period to September 2026.” Has that period been extended, and if so by what resolution? On which dates have its minutes been reported to the elected Council?
Question 5. Cr Boyd’s question of 28 April and 29 July — why Council maintains a committee whose voting membership is the Council — has now been put twice in open session. Has any advice been prepared for councillors in answer to it, and if not, will it be?

5. Resignations, vacancies and continuity <>
The system depends on people, and this term has tested that.

Three of the thirteen councillors elected in September 2024 have since left Council and been replaced by countback: Cr Pakes (November 2024), Cr Johnston (September 2025) and Cr Cox (December 2025). Each departure vacated committee positions. Mayor White, who chairs the Affordable Housing Action Taskforce and the Finance and Infrastructure Review Panel and is a member of the Transport Forum and the Motor Sports Working Group, is on approved leave; Cr Tribe acted as chair of the Taskforce in June and Cr Wilkins sits on the Forum in her place. The Chairperson of the Aboriginal Advisory Committee resigned as chair on 3 August 2026, and a community member of that Committee resigned in June. Two youth positions and one community position on that Committee have been advertised without success. The Low-Cost Rental Initiative Working Group cannot meet until community members are appointed.

None of that is a criticism of any individual. Councillors leave for their own reasons; chairs step down; volunteers move on. It is a criticism of a design in which the continuity

of an advisory body is tied to one office-holder, in which a chair's resignation can lock a committee out of recruiting, and in which nobody appears to track the vacancies as a set.

Question 6. How many community, industry or agency members have resigned from, or ceased to attend, Council's committees, taskforces, working groups and panels since October 2024, in aggregate and by body? How many positions are currently vacant, and for how long has each been advertised?
Question 7. When a councillor leaves Council, what is the process by which their committee positions are identified, reported and refilled, and where is that recorded? Were the committee positions held by Crs Pakes, Johnston and Cox all refilled, and on what dates?
Question 8. What is Council's practice when the chair of an advisory body is on extended leave — does the body pause, does a deputy act by standing arrangement, or is it decided case by case? Which of the bodies chaired by the Mayor have met since her leave began, and under whose chairing?

6. Why is none of this being addressed? <>
Every problem in this letter is already on Council's public record. The dormant committees were identified in October 2024 and dealt with in September 2025. The unquantified Financial Implications paragraph has been through two annual reports. POL22/72, governing twenty-eight section 355 committees, passed its review date on 1 December 2024. POL16/172, governing the Aboriginal Advisory Committee, passed its review date on the same day. The Affordable Housing Action Taskforce's Terms of Reference require a reporting step that does not appear to have happened. A councillor has twice asked, in open session, why a committee exists, and been told the chamber is "not the right arena."

The general manager's function under section 335(f) is to ensure councillors are given the information and advice they need to discharge their functions. On the evidence, the information they have been given about this system is a paragraph, repeated, and the advice has been to continue.

Question 9. Will you bring to an Ordinary meeting before the end of 2026 a report on the committee system that contains, for every committee, taskforce, working group, panel and forum: its establishing resolution; its Terms of Reference and their review date; its cost in officer hours for 2025/26; its meetings held against meetings scheduled; its recommendations and their status; its vacancies and resignations; and your recommendation, with reasons, to continue, amend or wind it up?
Question 10. Will you recommend that Council adopt a sunset provision under which every advisory body ceases on a fixed date unless re-established by a separate resolution on its own report?
Question 11. Has Council reviewed the sub-delegation in MIN21.411 against the 2025

Authorisation and Delegation Instrument, and will the Local Transport Forum be operated in the format the Instrument permits for matters that do not require prior referral?

I ask for a response by Friday 9 October 2026. If any question cannot be answered, please say which and why, so the reason can be reported accurately.

I intend to publish this letter and any reply in full at steveprothero.substack.com and in the Eye on Shoalhaven Council group.

No adverse finding has been made against any councillor, officer or committee member, and none is implied. Every factual statement in this letter is drawn from Council's published agendas, minutes, policies and attachments, from the Local Government Act 1993, and from Transport for NSW's published instrument and guide; the cost figures are estimates and are labelled as such. I will correct any error promptly and with the same prominence.

Yours sincerely,

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